Discuss Revisions to
Board Policy DGBA (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy DGBA (Local) Personnel-Management Relations: Employee Complaints/Grievances.

Explanation:
The Administration recommended revisions to Board Policy DGBA Personnel-Management Relations: Employee Complaints/Grievances. The Administration recommends that the updated Local Board Policy DGBA (Local) be adopted as presented.

Policy Reference: DGBA Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

~~Complaints~~

~~In this policy, the terms "complaint" and "grievance" shall have the same meaning.~~

Other ~~Complaint~~ Grievance Process

Employee ~~complaints~~ grievances shall be filed in accordance with this policy, except as required by the policies listed below. Some of these policies require appeals to be submitted in accordance with DGBA after the relevant ~~complaint~~ grievance process:

1. ~~Complaints~~ Grievances alleging discrimination, including violations of Title IX (gender), Title VII (race, color, religion, sex, gender, sexual orientation, national origin), Section 504 (disability), or ADEA (age), shall be submitted in accordance with DIA.
2. ~~Complaints~~ Grievances alleging certain forms of harassment, including harassment by a supervisor and violation of Title VII, shall be submitted in accordance with DIA.
3. ~~Complaints~~ Grievances concerning retaliation relating to discrimination and harassment shall be submitted in accordance with DIA.
4. ~~Complaints~~ Grievances concerning instructional resources shall be submitted in accordance with the EF series.
5. ~~Complaints~~ Grievances concerning a commissioned peace officer who is an employee of the District shall be submitted in accordance with CKE.
6. ~~Complaints~~ Hearings concerning the proposed nonrenewal of a term contract issued under Chapter 21 of the Education Code shall be submitted in accordance with DFBB.
7. ~~Complaints~~ Hearings concerning the proposed termination or suspension without pay of an employee on a probationary, term, or continuing contract issued under Chapter 21 of the Education Code during the contract term shall be submitted in accordance with DFAA, DFBA, or DFCA.

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Notice to Employees

The District shall inform employees of this policy through appropriate District publications.

Guiding Principles

Informal Process

The Board encourages employees to discuss their concerns with their supervisor, principal, or other appropriate administrator who has the authority to address the concerns. Concerns should be expressed as soon as possible to allow early resolution at the lowest possible administrative level.

Informal resolution shall be encouraged but shall not extend any deadlines in this policy, except by mutual written consent.

Direct Communication With Board Members

Employees shall not be prohibited from communicating with a member of the Board regarding District operations except when communication between an employee and a Board member would be inappropriate because of a pending hearing or appeal related to the employee.

Formal Process

An employee may initiate the formal process described below by timely filing a written ~~complaint~~ grievance form.

Even after initiating the formal ~~complaint~~ grievance process, employees are encouraged to seek informal resolution of their concerns. An employee whose concerns are resolved may withdraw a formal ~~complaint~~ grievance at any time.

The process described in this policy shall not be construed to create new or additional rights beyond those granted by law or Board policy, nor to require a full evidentiary hearing or "mini-trial" at any level.

Freedom From Retaliation

Neither the Board nor any District employee shall unlawfully retaliate against an employee for bringing a concern or ~~complaint~~ grievance.

Whistleblower ~~Complaints~~ Grievances

Whistleblower ~~complaints~~ grievances shall be filed within the time specified by law and may be made to the Superintendent or designee beginning at Level Two. Timelines for the employee and the District set out in this policy may be shortened to allow the Board to make a final decision within 60 calendar days of the initiation of the ~~complaint~~ grievance. [See DG]

~~Complaints~~ Grievances Against Supervisors

~~Complaints~~ Grievances alleging a violation of law by a supervisor may be made to the Superintendent or designee. ~~Complaint~~ Grievance forms alleging a violation of law by the Superintendent may be submitted directly to the Board or designee.

General Provisions

Filing

~~Complaint~~ Grievance forms and appeal notices may be filed by hand-delivery, by electronic communication, including email and fax, or by U.S. Mail. Hand-delivered filings shall be timely filed if received by the appropriate administrator or designee by the close of business on the deadline. Filings submitted by electronic communication shall be timely filed if they are received by the close of business on the deadline, as indicated by the date/time shown on the electronic communication. Mail filings shall be timely filed if they are postmarked by U.S. Mail on or before the deadline and received by the appropriate administrator or designated representative no more than three days after the deadline.

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Scheduling Conferences

The District shall make reasonable attempts to schedule conferences at a mutually agreeable time. If the employee fails to appear at a scheduled conference, the District may hold the conference and issue a decision in the employee's absence.

Response

At Levels One and Two, "response" shall mean a written communication to the employee from the appropriate administrator. Responses may be hand-delivered, sent by electronic communication to the employee's email address of record, or sent by U.S. Mail to the employee's mailing address of record. Mailed responses shall be timely if they are postmarked by U.S. Mail on or before the deadline.

Days

"Days" shall mean District business days, unless otherwise noted. In calculating timelines under this policy, the day a document is filed is "day zero." The following business day is "day one."

Representative

"Representative" shall mean any person who or an organization that does not claim the right to strike and is designated by the employee to represent him or her in the ~~complaint~~ grievance process.

The employee may designate a representative through written notice to the District at any level of this process. The representative may participate in person or by telephone conference call. If the employee designates a representative with fewer than three days' notice to the District before a scheduled conference or hearing, the District may reschedule the conference or hearing to a later date, if desired, in order to include the District's counsel. The District may be represented by counsel at any level of the process.

Consolidating ~~Complaints~~ Grievances

~~Complaints~~ Grievances arising out of an event or a series of related events shall be addressed in one ~~complaint~~ grievance. Employees shall not file separate or serial ~~complaints~~ grievances arising from any event or series of events that have been or could have been addressed in a previous ~~complaint~~ grievance.

When two or more ~~complaints~~ grievances are sufficiently similar in nature and remedy sought to permit their resolution through one proceeding, the District may consolidate the ~~complaints~~ grievances.

Untimely Filings

All time limits shall be strictly followed unless modified by mutual written consent.

If a ~~complaint~~ grievance form or appeal notice is not timely filed, the ~~complaint~~ grievance may be dismissed, on written notice to the employee, at any point during the ~~complaint~~ grievance process. The employee may appeal the dismissal by seeking review in writing within ten days from the date of the written dismissal notice, starting at the level at which the ~~complaint~~ grievance was dismissed. Such appeal shall be limited to the issue of timeliness.

Costs Incurred

Each party shall pay its own costs incurred in the course of the ~~complaint~~ grievance.

~~Complaint~~ Grievance And Appeal Forms

~~Complaints~~ Grievances and appeals under this policy shall be submitted in writing on a form provided by the District.

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Copies of any documents that support the ~~complaint~~ grievance should be attached to the ~~complaint~~ grievance form. If the employee does not have copies of these documents, they may be presented at the Level One conference. ~~After the Level One conference, no new documents may be submitted by the employee unless the employee did not know the documents existed before the Level One conference.~~

A ~~complaint~~ grievance or appeal form that is incomplete in any material aspect may be dismissed but may be refiled with all the required information if the refiling is within the designated time for filing.

Audio Recording

As provided by law, an employee shall be permitted to make an audio recording of a conference or hearing under this policy at which the substance of the employee's ~~complaint~~ grievance is discussed. The employee shall notify all attendees present that an audio recording is taking place.

Recusal

A District employee or Board member involved in reviewing a grievance must recuse himself or herself from the review process if that employee or Board member is the subject of the grievance. If a Board member files a grievance, he or she shall be prohibited from voting on matters related to that grievance. If the designated administrator at any level of the review process is required to recuse himself or herself, the grievance shall be subject to a higher level of review.

Grievance Record

At each level of the grievance review process, a record shall be created and retained by the District. This record shall include:

1. Documents submitted by the person who filed the grievance or determined relevant by school district personnel; and
2. A written record of the decision, including an explanation of the basis for the decision and an indication of each document that supports the decision.

The person who filed the grievance may supplement the record with additional documents or add additional claims.

Remand

At any time, a grievance may be remanded to a lower level of review to develop a record, including when a grievance is pending before the Board of Trustees.

Decisions Made on the Merits

At each level in the grievance review process, the District shall is-sue a decision on the merits of the concern raised in the grievance, notwithstanding procedural errors or the type of relief requested.

Level One

~~Complaint~~ Grievance forms must be filed:

1. Within ~~15~~ 60 calendar days of the date the employee first knew~~, or with reasonable diligence should have known, of the decision or action~~ or had reason to know of the facts giving rise to the ~~complaint or~~ grievance~~; and~~, or the later of:
   A. 90 calendar days of the date the employee first knew or had reason to know of the facts giving rise to the grievance if the employee engaged in informal attempts to resolve the grievance, or
   B. 30 calendar days from the date on which the District provided information to the grievant regarding how to file the grievance; and
2. With the principal's or principal's designee's office at the school campus at which the student attends or at which the facts giving rise to the grievance occurred, or, for a grievance that arises from a subject matter unrelated to a campus, with an administrator at the District's central office ~~District's legal office~~.

In most circumstances, employees on a school campus shall file Level One grievances with the campus principal; other District employees shall file Level One grievances with their immediate supervisor.

If the only administrator who has authority to remedy the alleged problem is the Superintendent or designee or the grievance arises from subject matter unrelated to a specific campus, the grievance may begin at Level Two following the procedure, including deadlines, for filing the grievance form at Level One.

If the ~~complaint~~ grievance is not filed with the ~~District's legal office~~ appropriate administrator as stated above, the receiving administrator must note the date and time the ~~complaint~~ grievance form was received and immediately forward the ~~complaint~~ grievance form to the ~~legal office~~ appropriate administrator as stated above.

The principal, designee, or other appropriate administrator ~~hearing officer~~ shall investigate as necessary and schedule a conference with the employee within ten calendar days after ~~receipt of the written complaint~~ the date the grievance was initially filed. The principal, designee, or other appropriate administrator ~~hearing officer~~ may set reasonable time limits for the conference.

~~Absent extenuating circumstances, (~~The principal, designee, or other appropriate administrator ~~hearing officer~~ shall provide the employee a written response within ~~ten~~ 20 calendar days following the conference. The written response shall set forth the basis of the decision, any relief or redress to be provided and information regarding filing an appeal, including the timeline for filing such appeal under this policy and under Texas Education Code § 7.057, as applicable. In reaching a decision, the principal, designee, or other appropriate administrator ~~hearing officer~~ may consider information provided at the Level One conference and any other relevant documents or information the administrator ~~hearing officer~~ believes will help resolve the ~~complaint~~ grievance.

Level Two

If the employee did not receive the relief requested at Level One or if the time for a response has expired, the employee may request to appeal the Level One decision. The designated Level Two administrator shall be the Superintendent or the Superintendent's designee at the District's central office.

The appeal notice must be filed in writing, on a form provided by the District~~'s legal office,~~ within ~~ten~~ 20 calendar days of the date of the written Level One response or, if no response was received, within ~~ten~~ 20 calendar days of the Level One response deadline.

After receiving notice of the appeal, the ~~Level One~~ principal, designee, or other appropriate administrator

~~hearing officer~~ who considered the grievance at Level One shall prepare and forward a record of the Level One ~~complaint~~ grievance to the Level Two administrator ~~hearing officer and the legal office~~. The employee may request a copy of the Level One record.

The Level One record shall include:

1. The original ~~complaint~~ grievance form and any attachments.
2. All other documents submitted by the employee at Level One.
3. The written response issued at Level One and any attachments.
4. All other documents relied upon by the Level One administrator ~~hearing officer~~ in reaching the Level One decision.

The Superintendent or designee ~~Level Two hearing officer~~ shall schedule a conference within ten calendar days after the appeal notice is filed. The conference shall be limited to the issues and documents considered at Level One. At the conference, the employee may provide information concerning any documents or information relied upon by the administration for the Level One decision. The Superintendent or designee ~~Level Two hearing officer~~ may set reasonable time limits for the conference.

The Superintendent or designee ~~Level Two hearing officer~~ shall provide the employee a written response within ten days following the conference. The written response shall set forth the basis of the decision, any relief or redress to be provided and information regarding filing an appeal, including the timeline for filing such appeal under this policy and under Texas Education Code § 7.057, as applicable. In reaching a decision, the Superintendent or designee ~~hearing officer~~ may consider the Level One record, information provided at the Level Two conference, and any other relevant documents or information the Superintendent or designee ~~hearing officer~~ believes will help resolve the ~~complaint~~ grievance. 338

Recordings of the Level One and Level Two conferences, if any, shall be maintained with the Level One and Level Two records.

Level Three

If the employee did not receive the relief requested at Level Two or if the time for a response has expired, the employee may appeal the decision to the Board.

The appeal notice must be filed in writing, on a form provided by the District~~'s legal office~~, within ~~ten~~ 20 calendar days of the date of the written Level Two response or, if no response was received, within ~~ten~~ 20 calendar days of the Level Two response deadline.

The Board may delegate the authority to hear and decide a grievance to a committee of at least three members composed only of members of the Board. For purposes of an appeal to the Commissioner of Education under Texas Education Code § 7.057, a decision by this committee constitutes a decision of the Board.

The ~~legal office~~ Superintendent or designee shall inform the employee of the date, time, and place of the Board meeting at which the ~~complaint~~ grievance will be on the agenda for presentation to the Board. The Board or its committee must hold a meeting to discuss the grievance not later than the 60th day after the date on which the previous decision on the grievance was made.

The ~~legal office~~ Superintendent or designee shall provide the Board the record of the Level Two appeal. The employee may request a copy of the Level Two record.

The Level Two record shall include:

1. The Level One record.
2. The notice of appeal from Level One to Level Two.
3. The written response issued at Level Two and any attachments.

4. All other documents relied upon by the administration ~~hearing officer~~ in reaching the Level Two decision.

The appeal shall be limited to the issues and documents considered at Level Two, except that if at the Level Three hearing the ~~administration~~ Board of Trustees intends to rely on evidence not included in the Level Two record, the ~~administration~~ Superintendent or designee shall provide the employee a description notice of the nature of the evidence or other information the Board intends to rely on at least ~~three~~ five days before the hearing.

The employee may request that the hearing or meeting at which the meeting will be discussed be open or closed, unless otherwise required by law. If the employee does not make this request, ~~T~~the ~~District~~ Board shall determine whether the ~~complaint~~ grievance will be presented in open or closed meeting in accordance with the Texas Open Meetings Act and other applicable law. [See BE]

The presiding officer may set reasonable time limits and guidelines for the presentation, including an opportunity for the employee and administration to each make a presentation and provide rebuttal and an opportunity for questioning by the Board. The Board shall hear the ~~complaint~~ grievance and may request that the administration provide an explanation for the decisions at the preceding levels.

In addition to any other record of the Board meeting required by law, the Board shall prepare a separate record of the Level Three presentation. The Level Three presentation, including the presentation by the employee or the employee's representative, any presentation from the administration, and questions from the Board with responses, shall be recorded by audio recording, video/audio recording, or court reporter.

The Board shall then consider the ~~complaint~~ grievance. ~~It~~ The Board shall ~~may~~ make and give notice of its decision orally or in writing ~~at any time up to and including the next regularly scheduled Board meeting~~ not later than the 30th day after the date on which the Board or its committee considers the grievance. ~~If the Board does not make a decision regarding the complaint by the end of the next regularly scheduled meeting, the lack of a response by the Board upholds the administrative decision at Level Two.~~

Report to TEA

The District shall annually submit to TEA a report on grievances filed in the District during the preceding year. For each grievance included on the report, the District shall include the resolution of the grievance and any corrective action taken.

Availability of Policy

The following shall be made available in a prominent location on the District's website and included in the Student Handbook:

- This policy;
- The grievance and appeal forms referenced in this policy;
- The method by which a grievance may be filed electronically.

Appeal To Commissioner

Except as may be provided to the contrary by state or federal law or other District policies, Level Three decisions by the Board may be appealed to the Commissioner of Education.